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Circular nº 4231/Add.3
23 abril 2020

A: Todos los Miembros de la OMI
Organizaciones intergubernamentales
Organizaciones no gubernamentales con carácter consultivo

Asunto: **Comunicación recibida del Gobierno del Reino de Noruega**

El Gobierno del Reino de Noruega ha enviado la comunicación adjunta, con fecha de 22 de abril de 2020, solicitando que sea distribuida por la Organización.

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UN TRANSPORTE MARÍTIMO SOSTENIBLE PARA UN PLANETA SOSTENIBLE

Sjøfartsdirektoratet
Norwegian Maritime Authority

**Our date**
22.04.2020

**Your reference**

**Our reference**
2020/29980-2

**File no**
074

**Inquiries to**

**Direct phone**
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International Maritime Organization
4, Albert Embankment
SE1 7SR London

Dear Secretary-General,

## Extending the validity of all trading certificates and vessel instructions expiring in 2020 for Norwegian-flagged ships

It would be highly appreciated if you would arrange for this information (starting on page 2 of this letter) to be circulated to the member States and other parties concerned. The information may also be accessed at our web site
https://www.sdir.no/en/news/news-from-the-nma/regarding-extension-of-statutory-inspections-and-issuanceendorsement-of-statutory-certificates-due-to-covid-19/

Please accept, Sir, the assurance of our highest consideration.

Yours faithfully,

Bjørn Pedersen
Director

Haakon Storhaug
IMO-coordinator

This document has been electronically approved and signed.

Sjøfartsdirektoratet
Norwegian Maritime Authority

The Norwegian Maritime Authority (NMA) has now decided that all trading certificates and vessel instructions expiring in 2020 will be granted a 3-month extension without further approval from the NMA.

Initially, the extended validity of trading certificates applied to certificates expiring before 12 June.

The Norwegian Maritime Authority (NMA) has now decided that all trading certificates and vessel instructions expiring in 2020 will be granted a 3-month extension without further approval from the NMA.

This extended validity is due to the current pandemic situation. At present, it is important that ships may sail. The movement of goods and medicines must not be obstructed. The NMA wants to be flexible in order to facilitate the delivery of such products.

## Regarding extension of statutory supervision and issuance/endorsement of statutory certificates due to COVID-19

## 1 – Scope

This note shall apply to all Norwegian flagged vessels registered in the Norwegian Ordinary Ship Register (NOR) or the Norwegian International Ship Register (NIS), as well as all fishing vessels and cargo ships of 8 to 15 metres having vessel instructions.

## 2 – Background

Since the outbreak of the coronavirus disease in 2019 (COVID-19), the Norwegian Maritime Authority (NMA) has received inquiries from shipowners and Recognized Organizations (RO) regarding the postponement of supervision and extending the validity of mandatory certificates. This includes an extension of statutory certificates or postponement of bottom inspections as a result of unavailable dry-dock facilities.

Travelling, both nationally and internationally, has become increasingly difficult as travel bans have been imposed. Combined travel restrictions given by governments and companies cause difficulties with providing inspectors when needed. Furthermore, several shipyards cannot accommodate vessels. This applies to both booked and planned supervision requiring dry-dock.

Based on the above conditions, the NMA considers the COVID-19 outbreak to be a *force majeure* situation.

For the NMA, the main focus is that ships registered in NOR or NIS to the greatest extent possible shall not be out of operation due to any expired certificates caused by the current COVID-19 situation.

## 3 – Relevant references

**IMO Circular Letter No.4204/Add.1**

**IMO Circular Letter No.4204/Add.2**

**IMO Circular Letter No.4204/Add.3**

**IMO Circular Letter No.4204/Add.4**

## 4 – Extension of certificates

The ship owner is responsible for ensuring that all vessels are kept in prescriptive condition. The Norwegian Maritime Authority (NMA) has decided that certificates and vessel instructions expiring before 1 January 2021 will be granted a 3-month extension without further application or approval from the NMA.

All possible measures will be taken to ensure that statutory certificates are kept valid. An open dialogue between the supervisory authority and the shipping company is important to ensure this. The NMA will, together with the individual company, work to come up with good solutions to any challenges related to trading certificates.

## 5 – Instructions to ROs and delegated authorities

All possible measures will be taken to ensure that statutory certificates are kept valid. An open dialogue between the supervisory authority and the shipping company is an important prerequisite.

If ROs or other delegated authorities do not have the opportunity to carry out required supervision, cf. item 2, the arrangement of a 3-month extension will apply, cf. item 4.

ROs and other delegated authorities must keep track of all extensions to make sure that necessary supervision and certifications will be carried out when the new deadlines expire.

## 6 – Instructions for service providers

The extension will also apply to certificates granted by service providers to the Administration or ROs, including, but not limited to service providers certifying life-saving equipment, fire-fighting equipment, etc.

## 7 – Documentation

The following **attachment** must be printed and made available on board and shall be presented upon request at supervisions and port State controls, etc.

## 8 – Notification

The NMA will notify IMO, relevant stakeholders such as Port State MOU's of the above decision.

tekstfelt

**Right to appeal**

Please note that individual decisions made by the Norwegian Maritime Authority may be appealed to the Ministry of Trade and Industry pursuant to § 28 of the Public Administration Act. Appeals must be lodged

within three weeks with the Norwegian Maritime Authority. Also note that parties are entitled to acquaint themselves with the document in the case pursuant to § 18 of the Public Administration Act, cf. § 19.

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